

exclusive knowledge of the defects but did not disclose them to consumers, Nissan intended to conceal the information, and the plaintiff would not have bought the vehicle in question had the plaintiff known the information. (*Id.* at p. 844.) Allegations that the plaintiff bought the car from a Nissan dealership with a Nissan-backed warranty and that dealerships are Nissan's agents for purposes of sale sufficed to state a buyer-seller relationship between the parties. (*Ibid.*) The court rebuffed Nissan's argument that the plaintiff was not specific enough about what it should have disclosed where the plaintiff described the effects of the transmission defect and alleged that Nissan knew of these effects from premarket testing and consumer complaints. (*Ibid.*)

Plaintiff's allegations in the instant complaint are not sufficient. Plaintiff alleges only in general and conclusory terms that Defendant knew or should have known of the engine defect from pre- and post-production market testing, consumer complaints, and warranty data. (First Amended Complaint at ¶¶ 49, 63.) This contrasts with *Dhital* (and other lemon law actions seen in this court), where the plaintiff alleged that the manufacturer defendant had knowledge of the defect due to specific sources such as technical service bulletins issued that concerned the defect. (*Dhital, supra*, 84 Cal.App.5th at pp. 833-834.)

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) The court finds identified defects are amenable to cure.

Conclusion. Defendant's demurrer is sustained with leave to amend.

BRODERICK v. STAVRINIDES
Case No. CU25-07061

Defendants Notice of Motion and Motion to Vacate the Paragraph (4)(b)(1) Portion of the Filed May 26, 2026 Order on Request to Continue Hearing

TENTATIVE RULING

On its own motion the court continues this matter to September 22, 2026 at 9:00 A.M. in Department 3.

CITY OF BENICIA v. CHARLA A. WIMMER
Case No. CU26-05820

Petition for Order to Abate Substandard Building and Appoint Receiver

TENTATIVE RULING

Petitioner CITY OF BENICIA seeks an order declaring the property at 75 Buena Vista Street, Benicia, California 94510 substandard and appointing a receiver to abate the nuisance.

Petitioner has met all statutory notice requirements for this petition in light of its additional filings from August 10 and 12, 2026 detailing its efforts to contract Respondent in Montana and service of the petition on her out-of-state addresses by first-class mail. Petitioner presents sufficient evidence of the property's violation of numerous building standard regulations and ordinances. The property owner and potential heirs and other interested persons have been afforded a reasonable opportunity to correct the property's nuisance conditions and has not shown ability or will to do so. The court is inclined to grant the petition; however, Petitioner is to appear and offer additional information to the court as to why it has selected a receiver based in Southern California, as the court requested at the July 21, 2026 hearing on this petition. The court additionally notes that the requested bond amount of \$10,000 appears low for the proposed receivership.

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